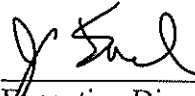


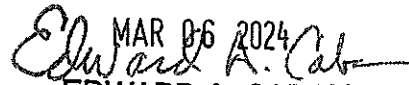
FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Nancy Slater, Department Advocate's Office, November 21, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27151 against Sergeant Gary Leite, Tax Registry No. 948376. The case was conferenced on November 2, 2023, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the dismissal of the charges in return for the recommended negotiated penalty of a Command Discipline Schedule (B) and the forfeiture of EIGHT (8) vacation days.



Executive Director,
Jonathan Darche
New York City Civilian Complaint Review Board

DISAPPROVED

MAR 06 2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27151
BOOK & PAGE NO. Page <u>1</u> of <u>2</u>
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, LEITE	FIRST GARY	M.I. A	COMMAND 121 DETECTIVE SQUAD
SHIELD NO. 5022	TAX REGISTRY NO. 948376	SOCIAL SECURITY NO.	DATE APPOINTED 07/14/2009	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Gary Leite, on or about June 11, 2021, at approximately 2310, while assigned to 063 PCT and on duty, in the vicinity of East 53rd Street and Avenue J, Kings County, wrongfully used force, in that he hit § 87(2)(b) against a vehicle without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 8.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Sergeant Gary Leite, on or about June 11, 2021, at approximately 2310, while assigned to 063 PCT and on duty, in the vicinity of East 53rd Street and Avenue J, Kings County, was discourteous in that he spoke discourteously to § 87(2)(b) when he stated in sum and substance, "Were stopping you for fucking pissing, bro" without police necessity.	DISMISSED	
3. Sergeant Gary Leite, on or about June 11, 2021, at approximately 2310, while assigned to 063 PCT and on duty, in the vicinity of East 53rd Street and Avenue J, Kings County, abused his authority as a member of the New York City Police	DISMISSED	



FIRST DEPUTY COMMISSIONER

12/15/23

DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)



POLICE COMMISSIONER

3/6/24

DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27151
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, LEITE	FIRST GARY	M.I. A	COMMAND 121 DETECTIVE SQUAD
SHIELD NO. 5022	TAX REGISTRY NO. 948376	SOCIAL SECURITY NO.	DATE APPOINTED 07/14/2009	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
Department, in that he searched § 87(2)(b) bag without sufficient legal authority. 4 . Sergeant Gary Leite, on or about December 8, 2021, at approximately 1038, while assigned to 121 DET, at 100 Church Street, New York County, in the course of an investigation by the Civilian Complaint Review Board, provided a false official statement when he stated that on June 11, 2021, § 87(2)(b) bladed his body in response to Police Officer Cioffis attempt to stop him.	DISMISSED	

DC Bowling
FIRST DEPUTY COMMISSIONER

12/15/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)

Edward A. Cioffis
POLICE COMMISSIONER

3/6/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 29, 2024

Re: CCRB Case No. 202103922 (Incident Date: June 11, 2021) involving Sergeant Gary Leite,
Tax No. 948376 (DADS No. 2022-27151)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Gary Leite and has determined that his actions do not warrant the proposed penalty.

In this case, Sergeant Leite and Police Officer Cioffi observed the complainant urinating in public when they attempted to stop the complainant. When Officer Cioffi, in uniform, asked the complainant to stop, the complainant backpedaled and turned his body away from the officer. Believing the complainant was about to run away from Officer Cioffi, Sergeant Leite grabbed the complainant around the arms and torso, and held the complainant against the trunk of the officers' police vehicle. When Sergeant Leite grabbed the complainant, he felt a long, hard object in the complainant's cross-body bag press against his body. Sergeant Leite, believing the object to be a firearm, then frisked the bag and felt a hard, rectangular object he believed to be the barrel of a firearm. Sergeant Leite then opened and searched the bag, and determined the object was not a firearm but a long phone charger.

Based on the facts and circumstances disclosed in this investigation, and relevant video and testimonial evidence, the Police Commissioner believes that Sergeant Leite had reasonable suspicion to frisk and search the complainant's bag for a weapon, and that Sergeant Leite used reasonable and minimal force to prevent the complainant from running away from Officer Cioffi. However, Sergeant Leite did use discourteous language, unbecoming of a uniformed member of the service, when he explained to the complainant the reason for the stop.

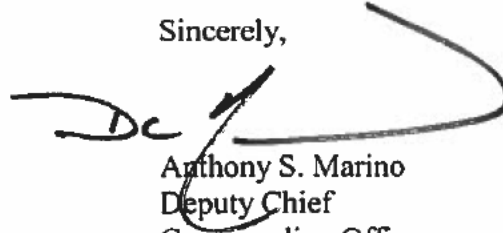
Therefore, while the Police Commissioner agrees with the CCRB that the charges and specifications in this matter should be dismissed, he intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the discourtesy allegation.

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Website: <http://nyc.gov/nypd>

Additionally, the Police Commissioner intends to impose no disciplinary action for the force and search allegations.

Sincerely,

A handwritten signature in black ink, appearing to read 'AS Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

March 4, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202103922 (Incident Date: June 11, 2021) involving Sergeant Gary Leite, Tax No. 948376 (DADS No. 2022-27151)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated February 29, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty, you intend on dismissing the charges and specifications related to the use of force and the search and imposing no disciplinary penalty on Sergeant Leite for those allegations, as you determined that Sergeant Leite’s use of force was reasonable and that he was justified in searching § 87(2)(b) bag. Deputy Chief Marino also stated that you agreed that Sergeant Leite’s use of discourtesy constituted misconduct and that Sergeant Leite would be issued a Schedule “A” Command Discipline with the forfeiture of one (1) vacation day on that specification.

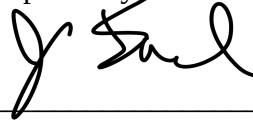
On November 2, 2023, in front of Assistant Deputy Commissioner Vanessa Facio-Lince, Sergeant Leite accepted the findings of substantiation in all of the allegations contained in the Charges and Specifications, and agreed to receive a Command Discipline Schedule (B) and the forfeiture of eight (8) vacation days along with a dismissal of the charges.

We disagree with the Police Commissioner’s opinion that Sergeant Leite’s use of force against § 87(2)(b) was justified. Officer Cioffi’s BWC clearly showed that § 87(2)(b) made no attempt to leave the area when confronted by the officers. Despite this, Sergeant Leite is shown running up to § 87(2)(b) wrapping his arms around him, and hitting him against a vehicle. Such

a use of force by Sergeant Leite was excessive and unwarranted. We also disagree that Sergeant Leite was justified in searching § 87(2)(b) bag. Sergeant Leite stated that he carried out this search after feeling a hard, rectangular object in the bag. This object turned out to be a phone charger. It is not credible or reasonable for Sergeant Leite to have mistaken this rectangular object for a firearm, which has a distinctive L-shape. The mere feeling of a 'hard object' inside a bag does not, in itself, justify a search. § 87(2)(b) had been stopped for a non-violent violation, urinating in public, and there were no facts present that would have reasonably suggested that he possessed a weapon.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Sergeant Leite, and impose upon Sergeant Leite a Command Discipline Schedule (B) and the forfeiture of eight (8) vacation days, along with a dismissal of the charges.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board